

Plaintiff filed his request for a pretrial discovery conference on February 2, 2026, which was denied by the court on February 20, 2026. Plaintiff filed his motions to compel further responses on March 5, 2026.

Therefore, the court will not hear the merits of the motions to compel further responses at this time, as the plaintiff has not shown that he engaged in a good faith effort to meet and confer on the issues raised by the responses. Instead, the court intends to continue the matter and order the parties to engage in further efforts to meet and confer in person, by phone, or by videoconference. The court will also order plaintiff's counsel to file a supplemental declaration before the hearing regarding the results of the discussions, and what responses, if any, remain at issue. At the continued hearing, the court will rule on the responses that remain in dispute, if any.

Tentative Ruling

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Tentative Ruling

Re: ***Insurance Company of the West v. Marquez et al.***
Superior Court Case No. 26CECG00882

Hearing Date: August 11, 2026 (Dept. 502)

Motion: By Richard Venegas to File Complaint-In-Intervention

Tentative Ruling:

To grant. (Code Civ. Proc., § 387, subd. (d)(1).)

Explanation:

Plaintiff-in-Intervention Richard Venegas ("Venegas") moves for leave to file complaint-in-intervention under Code of Civil Procedure section 387, subdivision (d)(1), and Labor Code section 3853.

Code of Civil Procedure section 387, subdivision (d)(1), states in pertinent part, "The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if...[a] provision of law confers an unconditional right to intervene." Labor Code section 3850 states in pertinent part, "As used in this chapter... 'Employer' includes insurer". Labor Code section 3853 states in pertinent part, "If the action is brought by either the employer or employee, the other may, at any time before trial on the facts, join as party plaintiff or shall consolidate his action, if brought independently."

The current case arises from an incident involving Venegas upon which Venegas filed a worker's compensation claim. (Kreit Decl., ¶¶ 2-3.) Insurance Company of the West ("West") paid out benefits to Venegas. (*Id.*, ¶ 3.) West is Venegas's Employer's Insurance. Therefore, West meets the definition of Employer for purposes of Labor Code section 3853. Labor Code section 3853 provides a statutory basis for Venegas to intervene. Accordingly, Venegas's motion for leave to file complaint-in-intervention is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 8-10-26
(Judge's initials) (Date)